BEFORE THE HONORABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA

SITTING IN ITS OCTOBER TERM, A.D. 2021

BEFORE HIS HONOR: FRANCIS S. KORKPOR, SR...CHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE..ASSOCIATE JUSTICE
BEFORE HER HONOR: SIE-A-NYENE G. YUOH ....ASSOCIATE JUSTICE
BEFORE HIS HONOR: JOSEPH N. NAGBE...ASSOCIATE JUSTICE
BEFORE HIS HONOR: YUSSIF D. KABA...ASSOCIATE JUSTICE

JUDICIAL INQUIRY COMMISSION (JIC) REPORT IN THE CASE: AMOS BROSIUS VERSUS HER HONOR EVA MAPPY MORGAN, CHIEF JUDGE, COMMERCIAL COURT OF LIBERIA.

Heard: June 23, 2021 Decided: September 26, 2022

MR. CHIEF JUSTICE KORKPOR DISSENTS

I believe that the conclusion reached by the majority members of this Court in this case is wrong. They have found that the respondent judge is blameless on all counts, I sincerely disagree. And because my disagreement is based on fundamental principles of law and the Judicial Canons under which we operate, I am unable to go along with my colleagues at this time. This is why I have withheld my signature from the Judgment growing out of the majority opinion.

It is true though, as the majority opinion has indicated, that this case has witnessed, over time, relentless negative reporting from the media with allegations of corruption, theft and other acts of improprieties against the respondent judge. Public sentiments have been very high and many times I, as head of the Judiciary, was also accused of some wrong doing. These accusations, I submit, are absolutely baseless with no iota of truth.

Let me from the onset, be categorical and say that while I do not agree that the respondent judge is totally absolved of all wrong doing in this case as my colleagues have found, I see no evidence in the records that she withdrew or ordered the withdrawal of money from the account of the complainant as alleged in the complaint and widely speculated and circulated by the media. So I hold that this count of the complaint, being without a scintilla of evidence, has no factual basis. Albeit, in my opinion, when this Court which has the mandate to supervise and sanction the conduct of judges becomes seized of a case of this nature on appellate review, it must peruse all perspectives and brazenly say as it sees, based on the facts and applicable laws.

Here is a brief summary of the background facts that triggered the complainant's complaint:

A petition filed by MOTC at the Commercial Court alleged that the proceeds of petroleum products amounting to eight million United States Dollars (US$8,000,000.00) were not accounted for by Amos Brossius as General Manager of Ducor Petroleum. MOTC also filed a motion for preliminary injunction to prohibit Brossius from exercising any rights and privileges as General Manager of Ducor Petroleum Inc.

Sitting alone as a judge of the Commercial Court, the Chief Judge, Her Honor Eva Mappy-Morgan, ordered the issuance of the temporary restraining order (TRO) which was served on Brosius enjoining and prohibiting him from acting or exercising any rights and privileges as General Manager of the Ducor Petroleum Inc. as of on July 17, 2013. At the time Brosius had in his possession seven (7) checks amounting to US$ 212, 704.36 issued to Ducor Petroleum which he refused to deposit in the accounts of the company on grounds that MOTC will withdraw and utilize the checks to its advantage. He filed his returns to the petition for preliminary injunction along with a motion to vacate the TRO backed by a valid bond. No hearing was had on the motion for preliminary injunction and the motion to vacate the TRO. By operation of law, the TRO lapsed after ten days.

The respondent judge assigned the petition for accounting for pre-trial conference where the parties agreed that the seven checks in Brosius's possession and issued to Ducor Petroleum be deposited in Ducor Petroleum's account at the Liberia Bank for Development & Investment (LBDI) in account no 02212215151534O, and both parties agreed to freeze all of Ducor Petroleum's accounts, both at the LBDI and the ECO Bank pending the final determination of the petition for accounting. On July 15, 2013, the respondent judge wrote a letter to the President of LBDI and Ecobank instructing that "all transactions to the accounts i.e. deposits, withdrawal, check, etc. must be accompanied by a letter signed by the Chief Judge of the Commercial Court of Liberia, Her Honor, Eve Mappy-Morgan, authorizing said transaction".

Subsequently, one of counsels for MOTC, Cllr. T Negbalee Warner, on July 22, 2013 sent a letter to the respondent judge requesting her to remove the freeze imposed on the account and have the freeze apply only to the amount of (US$ 121,704.36) that is, the value of the seven checks paid to the order of Ducor Petroleum at LBDI or in an alternative, the bank be ordered to open an escrow account and transfer from the Ducor Petroleum's account to the escrow account the value of seven (7) checks upon instructions from the respondent judge.

The respondent judge without a hearing or notice to Brossius, on July 23, 2013 ordered that the freeze be lifted from the LBDI account and that the freeze apply only on the proceeds of the 7 checks amounting to (US$ 121,704.36). On July 24, 2013, the day after the respondent judge lifted the freeze on the LBDI account, she again wrote the management of LBDI authorizing them to unfreeze the entire account and return it to *status quo ante.* The complainant was not informed of these developments.

About two weeks after the unfreezing of the LBDI account, the parties through their lawyers on August 9, 2013 signed an Irrevocable Stipulation of Agreement in which they agreed to submit to an audit, to jointly vet and select the auditing firm, and that Brosius be restrained from carrying himself as, and acting in the capacity of General Manager of Ducor Petroleum pending the outcome of the audit. No reference was made to the preliminary injunction and the TRO, which by operation of law had already lapsed. In essence, the agreement that Brosius be restrained from carrying himself as, and acting in the capacity of General Manager of Ducor Petroleum pending the outcome of the audit amounted to resurrecting the restraining order against Brossius, which had already lapsed by operation of law. Brosius was not aware of this as the stipulation was discussed and signed by only the lawyers. Upon release of the audit report by PKF-Liberia Brosius filed a motion to vacate the award of the accounting audit report which was contested by MOTC.

The gist of the complainant's complaint is that while the proceedings in the petition for accounting was pending undetermined, and the accounts frozen as per the agreement of the parties, the unfreezing of the account at LBDI by the respondent judge and returning it to *status quo ante* with instructions that the Bank should allow transactions on the account without the need for further authorization from the Commercial Court injured the complainant, especially against the background of the TRO that the court had ordered issued against him. Brosius claims the conduct of the respondent Judge effectively resulted in turning the management and operation of Ducor Petroleum over to MOTC, his adversary. That as a result of this, over $3.1 Million United States Dollars was withdrawn from the account.

It is against the foregoing background that on June 29, 2018, Amos Brosius (complainant), lodged a complaint with the Chief Justice of the Supreme Court of Liberia against the respondent judge. The Chief Justice forwarded the complaint to the Judicial Inquiry Commission (JIC) on July 23, 2018. A copy of the complaint was served on the respondent judge, who on August 14, 2018, filed her returns.

At the JIC, the complainant amended his complaint and the respondent judge filed amended returns. The respondent judge denied that she gave any order to turnover any account of Brosius to MOTC but rather that she ordered the account unfrozen and returned it to *status quo ante* at which time Brosius could have accessed the account, since he was a signatory to the account; that the complainant has produced no communication from her to the bank authorizing sequels of withdrawals that amount to 1.3 Million United States Dollars; that the complainant was fully represented by lawyers in the pre-trial conference that drew up the irrevocable agreement to submit to accounting by a firm selected by the parties and for the complainant to be restrained from carrying himself as, and acting in the capacity of General Manager of Ducor Petroleum pending the outcome of the audit. The respondent judge specifically denied that she withdrew or caused to be withdrawn, any amount from Ducor Petroleum's account as alleged in the complaint.

The case remained with the JIC for a protracted period due to delay attributable to the counsels representing the complainant and the respondent. However, the JIC finally concluded the matter on April 7, 2021, and submitted its findings holding the respondent judge in breach of Judicial Canons 10, 24 and 25. The JIC held that the conduct of the respondent judge violated the following:

(i) The due process rights of the complainant as provided under Article 20(a) of the Constitution of Liberia when she presided over the petition for accounting singularly without jurisdiction over the subject matter;

(ii) The cardinal principle of notice as far as the agreement of MOTC and the complainant to freeze the account of Ducor Petroleum and her illegal orders are concerned;

(iii) Article 25 of the Constitution on the sanctity of the obligation of contract (agreement) and that no law (by implication no judicial order, ruling and judgment of a Judge) shall impair this right;

(iv) The law on ex parte application, specifically Article VI (c) of the Act to Amend the Judiciary Law, Title 17, Liberian Code of Law Revised, to provide for the Establishment of the Commercial Court, and

(v) Chapter 7 of the Civil Procedure Law, Revised Code on preliminary injunction and its effect after ten days in the absence of an indemnity bond hearing of the motion to vacate filed by the complainant.

Based on its findings the JIC recommended that:

(I) The Supreme Court suspends the respondent Judge for the period of one year without pay and benefits.

(II) Those lawyers involved with the petition for accounting whose representations appear wanting and derelict of fidelity to clients and violative of the Code of Moral and Professional Ethics and the laws of the Republic be forwarded to the Grievance and Ethics Committee for investigation.

(III) The JIC also opined that the complainant is not precluded by these proceedings to institute action of damages for wrong against the respondent Judge in a competent court of jurisdiction.

The respondent judge noted exceptions to the findings and recommendations of the JIC, announced an appeal therefrom to the Supreme Court and filed a bill of exceptions consisting of nineteen (19) counts. As indicated in the majority Opinion, this Court appointed five Counsellors to serve as amicus curiae (friends of the Court) to give candid advice on the issues raised. Four of the Counsellors filed brief, two in favor of the respondent judge and two against. One Counsellor was excused from participating in the case.

I should note, at this juncture that the JIC as a fact- finding body is confined and restricted to investigating alleged ethical transgression by magistrates and judges which violate the Judicial Cannons and does not concern itself with matters of a justifiable nature that are cognizable before the courts. Therefore, I shall not delve into the many issues in this case bordering on the substance of the proceedings before the Commercial Court for which the parties had adequate remedy by way of a remedial process or regular appeal.

With this in mind and from a careful perusal of the entire case file, including the complaint, the returns filed by the respondent judge, the findings and recommendations from the JIC, the bill of exceptions filed by the respondent judge, the briefs filed by the *amicus curiae* as well as the counsels representing the respondent judge and the oral arguments submitted before this Court, I shall consider two salient issues for the determination of this case:

1. Whether or not by single handedly presiding over the petition for accounting the respondent judge breached the Act Establishing the Commercial Court and if yes, whether such action is punishable under Judicial Cannon #10?

2. Whether or not the lifting of the freeze on Ducor Petroleum's LBDI account following the communication from the counsel for MOTC amounted to acting on an ex *parte* communication in violation of Judicial Cannons # 23 & 24?

On the question whether or not the respondent judge, by single handedly presiding over the petition for accounting breached the Act Establishing the Commercial Court and if yes, whether such action is punishable under Judicial Cannon #10, the JIC answered in the affirmative. It is not in dispute that the petition for accounting filed by MOTC against the complainant involves the amount of 8 million United States Dollars. As stated in the petition, MOTC was seeking accounting from the complainant for petroleum product worth eight million United States Dollars (US$8,000,000.00) MOTC says it entrusted to Brosius.

Article V, Section (2) of the Act Establishing the Commercial Court provides:

> "A case filed before the Commercial Court may be heard by one of the three Judges of the Commercial Court provided that where the amount of claim is in excess of US$1,000,000.00 (one million United States Dollars) or the Liberian Dollars equivalent, the case shall be heard by the full three judge panel"

The respondent judge advanced the argument, and my majority colleagues have accepted that because the action filed before the Commercial Court is a petition for accounting, there is no sum certain involved in the case; that it is only when the actual amount has been determined by proper accounting, i.e. after auditing and the amount is in excess of one million United States Dollars that the case can be heard by the full three panel judge, therefore the respondent judge was justified to have sat on the case alone. I disagree and hold the view that when an action is filed before a court, including an action for proper accounting, said action must be taken at its face value. In other words, the amount stated in the complaint should be the yardstick or benchmark for determining the claim. In the instant case, MOTC prayed for accounting from Amos Brosuis for petroleum products in the amount of US eight million dollars allegedly entrusted to him. In my view, on conducting proper accounting, the amount stated by MOTC could be confirmed or understated but yet still within the jurisdictional limits of the Commercial Court. It is only when the amount is overstated and the actual amount after the process of accounting falls below one million US dollars that a single judge of the Commercial can preside over it. The questions that linger are – what happens after the accounting is done and it is discovered that the amount is more than required for a single judge to sit on the case? What happens to the sundry decisions including pretrial applications/motions that a single judge would have taken as was done in the instant case? Will they be set aside and the matter returned to the full three panel judge? The proper thing to do, therefore, is to take the complaint at its face value.

It is trite law that any order, ruling or judgment of a judge is a legal nullity where the judge is without jurisdiction. In my view, the respondent judge in this case did not have jurisdiction when she presided over the petition for accounting filed by MOTC and this is a violation of the Act Establishing the Commercial Court. This Court, with the authority to sanction judges having assumed jurisdiction over this case for judicial review, though through the path of the JIC, can determine from the facts of the case which is not in dispute, that the respondent judge did not have jurisdiction to sit on the case alone. At least this much should have been recognized and pronounced by my majority colleagues, but they did not.

But I disagree with the JIC that for exceeding her jurisdiction the respondent judge can be held under Judicial Canon #10 which provides that:

> "A judge should be temperate, attentive, impartial, and since he is to administer the law interpret it and apply it to the facts; he should be studious of the principle of the law and diligent in endeavoring to ascertain the facts."

In my mind, Judicial Canon #10 is not applicable. As Counsellor Benedict Sannoh, one of the Amici Curiae in the case said in his brief, the law does not contemplate that judges be angels; they do make mistakes. When a judge errs, even on the issue of jurisdiction as in the case before us, the aggrieved party has remedy at law, either by regular appeal or by remedial writ. The point I make is that this Court should speak to the issue in such a case when the opportunity avails itself for corrective purposes and for deterrence. We cannot and must not remain silent.

The second issue is - whether or not the lifting of the freeze on Ducor Petroleum's LBDI account following the communication from the counsel for MOTC amounted to acting on an ex *parte* communication in violation of Judicial Cannons #23 & 24?

The JIC found and it is not in dispute that the freezing order issued by the respondent judge on July 15, 2013 was a result of an agreement by MOTC and the complainant to freeze the account of Ducor Petroleum except for the seven checks totaling amount (US$ 121,704.36) pending audit. The respondent judge proceeded to unfreeze and subsequently returned the Ducor Petroleum account at LBDI on the request of MOTC without notice to the complainant or his counsels. In my view, the freezing of the account in question being a result of an agreement, the respondent judge ought not to have ordered *ex parte* the unfreezing and returning to *status quo ante* on July 23, 2013 and July 24, 2013, respectively, without the knowledge of the complainant. I hold that the respondent judge's conduct in this respect clearly violates Judicial Canon #23 which provides:

" A judge should discourage ex parte hearing of applications for injunction and receiverships where the Order may work detriment to absent parties; he should act upon such ex parte applications only where the necessity for quick action is clearly shown, if this be demonstrated, then he should endeavor to counteract the effect of the absence of the opposing counsel by a scrupulous cross-examination as to the facts and principles of law on which the application is based, granting relief only when satisfied that the laws permit it and the emergency demands it. He should remember that an injunction is a limitation upon the freedom of action of defendant and should not be granted lightly or unadvisedly. One applying for such relief must sustain the burden of showing clearly its necessity and this burden is increased in the absence of the party whose freedom of action is sought to be restrained even though only temporarily."

The JIC found that the scruple and diligence required by Judicial Canon 23 was overlooked and not applied by the respondent judge when she elected to order the complainant enjoined continuously without considering his motion to vacate injunction and that it was egregious that the motion to vacate the preliminary injunction was not a subject of the pretrial conference and further that the respondent judge failed to demonstrate the necessity and emergency that the MOTC letter dated July 22, 2013 carried in view of the agreement between the MOTC and the complainant to expend the amount (US$ 121,704.36) for the interim management of Ducor Petroleum pending audit. I fully agree with these findings of the JIC. And it is important that I reiterate that the freezing of the Ducor Petroleum accounts pending an audit grew out of the petition for accounting, an adversarial proceeding which requires notice. That no notice was given to the complainant before unfreezing was a serious error.

The JIC found that the MOTC's letter dated July 22, 2012 was a private communication between the respondent judge and MOTC resulting to the respondent judge's orders of July 23, 2013 and July 24, 2013, respectively, which orders adversely affected the rights of the complainant in violation of Judicial Canon #24 which provides:

"A Judge should not permit private interview, argument or communication designed to influence his judicial action, where interest to be affected thereby are not represented before him. Except where provision is made by law for *ex parte* application"

In counts 3, 4 & 5 of the bill of exceptions filed by the respondent judge she asserts as follows:

"3. Respondent/Appellant says that it is the law in this jurisdiction that all rulings, order mandates and/ or similar actions of a lower court Judge are subject to review by the Honorable Supreme Court on appeal or via a remedial process. The law gives a Judge the right to entertain ex parte proceedings and in the matter before the Judge, if she was satisfied that there was sufficient reasons to lift the purported freeze on the account and "notice" was not a necessity for the said lifting, the law gave her the right to do just that. The order once issued, was communicated to all the lawyers involved in the matter including that of Mr. Brosuis. If Mr. Brosius' lawyer thought or determined the action of the judge erroneous, the lawyer had the remedy of requesting the Chambers Justice of the Supreme Court for a review of said order via the filing of a Petition for the Issuance of the Writ of Certiorari, and obtaining a stay order from the Justice. The law further gives a Judge the right to rescind his/her ruling provided rescission is made "within term time". So assuming the Respondent/Appellant Judge rescinded the unfreezing order and mandated that the account be returned to status quo ante, she acted within the pale of the law and hence, no judicial Canon can be said to have been violated. And for this reason, Respondent/Appellant excepts.

"4. Further to count three (3) above, Respondent says that any order of a judge, subject to review by a Chambers Justice or by the full bench of the Supreme Court on Appeal, cannot be the subject of inquiry by the JIC especially when the matter is still pending undetermined. Respondent/Appellant wonders aloud what would happen when a final determination is made in the Petition for accounting and an appeal taken to the Honorable Supreme Court; will the appealing party be stopped from including the alleged wrongful order to the Respondent/ Appellant in its Bill of Exception? Even if such a matter was raised, could the adverse party raise the issue that the matter has already been determined by the JIC? Respondent/Appellant says that her Ruling and order are only subject to review by the Honorable Supreme Court hence, the JIC's review or the issuance of said order is erroneous. And for this reason, Respondent/ Appellant excepts.

"5. The JIC found that the communication from MOTC requesting the unfreezing of the account was a private communication. Respondent/Appellant wonders how this conclusion could have been reached: The communication was filed with the Clerk of Court and placed on the court's file otherwise, how anyone else would have known of its existence. There was nothing private about the freezing and unfreezing in respect of the account which could amount to a violation of Judicial Canon 24, and for this reason, the finding of the JIC being patently erroneous, the Respondent/ Appellant excepts."

I disagree with the respondent judge and again find myself in full agreement with the finding of the JIC. I hold that the letter from MOTC's lawyer requesting the lifting of freeze was a private letter addressed to the respondent judge. In clear and unambiguous terms Judicial Canon 24 states that " A Judge should not permit private interview, arguments or communications designed to influence his judicial action, where interests to be affected thereby are not represented before him, except in case where provision is made by law for ex parte application."

The records do not show that copies of the letter in question were served on the complainant or his lawyers, or that a citation was issued and sent to the complainant and/or his counsels for a hearing on the important matter of lifting the freeze on the account in which the complainant has vital interest. Had this been done, the complainant would have been given the opportunity to present mitigating circumstances, if any, against the lifting of the freeze on the account in question, irrespective of any prior position taken by the parties on seven checks in the amount of US$ 121,704.36. The respondent judge should have conducted a hearing with all the parties present to determine the necessity of a "quick action" as provided for under Judicial Canon #23 before lifting the freeze. To the contrary, she acted on the letter with speed without notice to the complainant and his lawyers. It must be noted that the letter requesting that the freeze on the account be lifted was written on July 22, 2013; the respondent judge on the very next day, that is on July 23, 2013, granted the request without a hearing and lifted the freeze on the account. In my view, the action of the respondent judge constitutes a clear violation of Judicial Canons 23 & 24 for which a penalty should attach. Judicial Canon #39 provides that the penalty for violating any provision of the Judicial Canon shall be fine, suspension, impeachment and/or prosecution in a court of law according to the gravity of the violation. I believe that to totally vindicate the respondent judge as the majority of my colleagues have done in is an error. By their decision today, my colleagues have given freedom to trial court judges to carryout *ex parte* proceedings not in line with Judicial Canons # 23 & 24.qw

For the forgoing reasons, I have withheld my signature from the Judgment of the majority Opinion.

Signed: ______________________.

His Honor Francis S. Korkpor, Sr.

Chief Justice, Supreme Court of Liberia.

September 26, 2022.